

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**SUMMONS**-----X
Xavier Polite,

Plaintiff,

- against-

The City Of New York, Detective John Reuther, Shield No.
209, Detective Nicholas Albano, Shield No. 1179 and John
Does #1-4,Defendants.
-----X

Index No.:

Plaintiff designates
New York County as the
place of trialThe basis of venue is:
The situs of occurrence

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, to, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
June 25, 2021The nature of this action is for violation of Plaintiff's Civil and Constitutional Rights.
The relief sought is monetary damages.**LIAKAS LAW, P.C.**

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BY: Nicholas Mindicino, ESQ.

*Attorney for Plaintiff*65 Broadway, 13th Floor
New York, N.Y. 10006
(212) 937-7765**If you fail to respond, judgment will be entered against you, with interest from the date of incident.**Defendants:**City of New York**Office of the Corporation Counsel
100 Church Street
New York, New York 10007**Detective John Reuther, Shield No. 209 and****Detective Nicholas Albano, Shield No. 1179**1 Police Plaza
New York NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

Xavier Polite,

Plaintiff,

- against-

VERIFIED COMPLAINT

The City Of New York, Detective John Reuther, Shield No.
209, Detective Nicholas Albano, Shield No. 1179 and
John Does #1-4,

Defendants.

-----X

Plaintiff, by his attorneys, LIAKAS LAW, P.C., as and for this Complaint, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief through 42 U.S.C. §1983 and the laws of the State of New York for the violation of his right to be Free of Unreasonable Search and Seizure under the United States Constitution.

2. The claim arises from a June 1, 2020 incident in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to false arrest and malicious prosecution, assault, battery, and use of excessive force.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper

JURISDICTION AND VENUE

4. Within 90 days of the incidents alleged in this complaint, Plaintiff served upon Defendant, City of New York, a Notice of Claim setting forth the name and post office address of

Plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed.

5. More than 30 days have elapsed since Plaintiff's Notice of Claim was served on Defendant.

6. Venue is proper in the Supreme Court of the State of New York, New York County, because the acts in question occurred in the State of New York, New York County, and the City of New York is subject to personal jurisdiction in the Supreme Court of the State of New York, New York County.

PARTIES

7. Plaintiff, Xavier Polite (hereinafter "Plaintiff"), is a legal resident of the United States, residing in New York, NY.

8. The City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the New York Police Department (or "NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

9. Detective John Reuther, Shield No. 209, Detective Nicholas Albano, Shield No. 1179, and John Does #1-4 (individuals whose names are currently unknown to plaintiff), are employees of the NYPD, and are sued in their individual capacities. Detective Reuther, Detective Albano and John Does #1-4 are NYPD officers who participated in the arrest of and assault of plaintiff on June

1, 2020.

10. At all times here mentioned defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York

FACTUAL ALLEGATIONS

11. On June 1, 2020 at approximately 10:25 pm, Plaintiff was near the intersection of 5th Avenue and 58th Street in New York, NY.

12. Plaintiff was moving in the direction of a group of police officers including Detective Reuther, Detective Albano and John Does #1-4.

13. The defendants Detective Reuther, Detective Albano and John Does #1-4 tackled Plaintiff to the ground.

14. Defendants Detective Reuther, Detective Albano and John Does #1-4 assaulted Plaintiff by striking him about the head and body, forcing him from his feet to ground, and striking him with an object.

15. After Plaintiff fell to the ground defendants continued to strike him.

16. Plaintiff was physically restrained by the officers, on the ground, facing downward.

17. Plaintiff had not committed any crime, nor did defendants have probable cause or reasonable suspicion to believe that any crime had been committed.

18. Plaintiff did not resist or attempt to resist the officers.

19. Plaintiff did not strike nor attempt to strike any officer.

20. Plaintiff was arrested by Detective Reuther, Detective Albano and John Does #1-4.

21. Plaintiff was taken to a police precinct and then to Central Booking to await arraignment.

22. Plaintiff was eventually released after the New York County District Attorney's Office

declined to prosecute him.

23. Plaintiff was never charged with any crime related to this incident.

24. As a direct and proximate result of the malicious and outrageous conduct of Defendants set forth, Plaintiff suffered injuries and damages.

DAMAGES

25. As a direct and proximate result of the acts of defendants, plaintiff suffered the following injuries and damages:

- a. Violation of his right to Due Process of Law under the Fourteenth Amendment to the United States Constitution;
- b. Violation of his rights under the Fourth Amendment to the United States Constitution to be free unreasonable search and seizure;
- c. Physical pain and suffering;
- d. Loss of Liberty;
- e. Emotional distress, including fear, embarrassment, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

(42 U.S.C. § 1983 – as to Individual Defendants)

26. The above paragraphs are here incorporated by reference.

27. Defendants have deprived Plaintiff of his civil, constitutional and statutory rights under color of law and have conspired to deprive him of such rights and are liable to Plaintiff under 42 USC § 1983.

28. Defendants' conduct deprived Plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.

29. Defendants falsely arrested Plaintiff in violation of his rights under the Fourth and

Fourteenth Amendments.

30. Defendants used excessive and unnecessary force against Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments.

31. Defendants failed to intervene in each other's obviously illegal actions.

32. Plaintiff has been damaged as a result of defendants' wrongful acts.

SECOND CAUSE OF ACTION

(False Arrest – as to Individual Defendants)

33. The above paragraphs are here incorporated by reference

34. Defendants subjected plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

35. Defendants intended to confine plaintiff and in fact confined him.

36. Plaintiff was conscious of the confinement and did not consent to it.

37. The confinement was not privileged.

38. Plaintiff was damaged by his false arrest.

THIRD CAUSE OF ACTION

(Assault – As to Individual Defendants)

39. The above paragraphs are here incorporated by reference.

40. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

41. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under common law, and the laws and Constitution of New York State.

42. Plaintiff was damaged by defendants' assault.

THIRD CAUSE OF ACTION

(Battery – As to Individual Defendants)

43. The above paragraphs are here incorporated by reference.

44. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered them.

45. Defendants used excessive and unnecessary force with plaintiff.

46. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under common law, and the New York State Constitution.

47. Plaintiff was damaged by defendants' battery

FOURTH CAUSE OF ACTION

(Respondeat Superior – As to City of New York)

48. The above paragraphs are here incorporated by reference.

49. The defendants' tortious acts were undertaken within the scope of their employment by Defendant City of New York and in furtherance of the Defendant City of New York's interest.

50. As a result of defendants' tortious conduct in the course of their employment and in furtherance of the business of Defendant City of New York, Plaintiff was damaged.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows: Plaintiff demands compensatory and punitive damages, in the amount not to exceed jurisdictional limits, for each of the above-stated causes of action against all Defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988; and such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

Dated: New York, New York
June 25, 2021

Yours, etc.
LIAKAS LAW, P.C.

By:



Nicholas Mindicino, ESQ.

Attorneys for Plaintiff

65 Broadway, 13th Floor
New York, New York 10006
(212) 937-7765

STATE OF NEW YORK)
) ss
COUNTY OF NEW YORK)

I, the undersigned, an attorney admitted to practice in the courts of New York State, state under penalty of perjury that I am one of the attorneys for Plaintiff in the within action; I have read the foregoing SUMMONS AND COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not by my client, is that my client is not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigations conducted by my office.

Dated: New York, New York
June 25, 2021


NICHOLAS MINDICINO, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Xavier Polite,

Plaintiff,

- against-

The City Of New York, Detective John Reuther, Shield No. 209,
Detective Nicholas Albano, Shield No. 1179 and John Does #1-4,
Defendants

LIAKAS LAW, P.C.
Attorneys for Plaintiff(s)
65 Broadway - 13th Floor
New York, New York 10006
212-937-7765

SUMMONS and VERIFIED COMPLAINT

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

Nicholas Mindicino, the undersigned, an attorney admitted to practice in the Courts of New York State, affirms the following:

I further certify that my signature below acts as a "certification" for the documents attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

Dated: New York, New York
June 25, 2021



Nicholas Mindicino, ESQ.

PLEASE TAKE NOTICE

- () that the within is a (certified) true copy of a Notice of _____ entered in the Office of the clerk of the within Entry named Court on _____
- () that an Order of which the within is a true copy will be presented for Notice of settlement to the Hon. _____ one of the Judges of the Settlement within named Court, on _____, at _____
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